

Digital Evidence

Week 12 – Presenting Evidence in Court

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Kahoot

- No Kahoot this week to give you a little more time to watch dep/trial videos

Objectives

- Describe the various terms and concepts relating to testifying and presenting evidence in court
- Discuss ethical considerations of witness preparation
- Understand the best practices and differences between deposition and trial testimony

Overview

1. Deposition Testimony
2. Trial Testimony

Deposition Key Points (Cont.)

- Witnesses should answer truthfully but also provide the other side as little new information as possible
- Wait 5 full seconds before you start to answer a question
 - Allows time for your attorney to object
 - Lets you think through your answer to make sure you completely understand the question
- Always answer verbally (don't use gestures)

Deposition Key Points (Cont.)

- Use short answers such as “Yes,” “No,” “I don’t recall,” “I don’t know,” or “I can’t answer the question the way you asked it” if you can and don’t expand on your answers
- Remember: You are **not** a narrator of a story
 - Only answer the exact questions you are asked
 - Don’t volunteer information

Volunteering Information

- If you volunteer too much information, you may:
 - Open up new areas for questioning
 - Equip the opposing attorney with more ammunition for their case
 - Eliminate opportunities for your attorney to use surprise as a strategy in a trial

Deposition Key Points (Cont.)

- Don't answer compound questions
 - You attorney should object but if they don't, say you can't answer since multiple questions were asked in that question

Purpose of a Deposition

1. Uncover information relevant to their case
2. Lock a witness into a story that can't be changed later at trial—without reducing credibility of the witness
3. Judge the credibility and likeability of the witness

Personality Styles of Attorneys in a Deposition

- Excessively polite or friendly
 - To get you to let your guard down for a devastating blow at the end of the deposition, or
 - To induce you to answer more openly
- Bullying and intimidating
 - To encourage you to get angry and make a mistake

Witness Personality

- Keep your cool and don't lose your composure or become defensive
- Don't make jokes or sarcastic comments

Witness Personality (Cont.)

- Opposing counsel uses a deposition as a chance to assess the witness
 - Does the witness have a naturally likeable presence and will get jury buy in?
 - Attorney might shorten trial testimony or focus more on documents
 - Is the witness antagonistic and the jury may naturally dislike them?
 - Attorney may lengthen testimony at trial and cover more areas

Standard Deposition Questions

- The witness's arrest and conviction record.
- Whether the witness has ever testified in a case before
- How the witness prepared for the deposition, including what documents the witness reviewed.
- What the opposing party's lawyer told the witness before the deposition (If the witness is not a party)
- Whether anyone else was in the meeting when they met with their lawyer (breaking privilege) (If the witness is a party)
- The witness's social network accounts – which ones they have, URLs, etc.

More Difficult Deposition Questions

- Attorneys often try to force longer answers by asking open ended questions
 - Only if the deposition is not going to be shown at trial in lieu of testimony
- One particular open-ended question often yields a lot of information...
 - Asking “why?”

More Difficult Deposition Questions (Cont.)

- Attorneys may also ask “Is that all?”
 - This is usually asked if you said something beneficial to their case and they then want to close the door so that you don’t add on to your answer later on in the deposition
 - This could backfire on the attorney though and allow you to add on a watered-down answer to the question right then

Speculation

- Definition: Forming a theory without firm evidence (i.e., Making a guess)
- Opposing counsel can ask you to speculate
- You are required to tell the truth but you do not have to speculate
 - Don't make a guess if you don't know for certain

Speculation Example – How to Answer

- Let's say you reviewed a large code base but don't remember how many pages it is
 - Attorney: How many lines of code were in the code base?
 - Witness: I don't recall
 - Attorney: Was it more than 10 pages?
 - Witness: Yes
 - Attorney: Was it more than 100 pages?
 - Witness: I don't recall
 - Attorney: So you would admit it is between 10 and 100 pages?
 - Witness: It is possible
 - Attorney: But you couldn't say for sure?
 - Witness: I could not say for sure

Note

- **Never answer a question that you didn't understand**
- Ask the attorney to rephrase the question until you do understand it

Double Negatives

- Attorneys may either ask a poorly worded question or ask a double negative to try to confuse you
- Ex: Isn't it true that your miscalculations aren't entirely inconclusive to this document?
 - Don't answer yes or no to this question
 - Ask for a rephrase or say something like, "There were no miscalculations."

Bias in Questions

1. Is it true that you did X? (Neutral bias)
 2. Isn't it true that you did X? (Biased)
 3. Is it not true that you did X? (Biased)
- Each question has the same meaning and the answer for each is either: "Yes, I did X." or "No, I did not do X."
 - #3 is often a formal version of #2.
 - To be safe, don't answer #3 with a yes or no and instead provide an answer such as in the prior bullet

Other Suggestions

- Don't explain your thought process in reaching an answer
- Don't characterize your testimony ("In all honesty," "To be honest," "I'm doing the best I can," etc.
- Avoid saying "I never" or "I always" if possible
- Don't answer a question that relies on a document that is not an exhibit at the deposition

Other Suggestions (Cont.)

- Don't let opposing counsel put words in your mouth
- If you are interrupted, let the opposing attorney finish their question.
 - Then, state that you were interrupted, and go ahead and finish your initial answer
- If caught in an inconsistency, don't state the reason
 - Your attorney can clean it up during their questions at the end

Yes/No Trap

- Attorneys will often try to force a yes/no when that response might not be the clear answer
- Ways to break out of that trap:
 - Not necessarily
 - It depends
 - I would need to know more
 - Yes/No with “and,” “but,” or “because” after it
 - I don’t know (if you really don’t know)

Other Suggestions (Cont.)

- Avoid even the slightest obscenities or slurs
- Nothing is “off the record”
- Do not educate opposing counsel if they seem confused about your profession or its technical aspects
- If asked about an exhibit, make sure to read it and understand it before answer a question about it
 - Don't make any comments about the exhibit

Other Suggestions (Cont.)

- Read every document put in front of you very carefully—even if it is your document
 - The other side may have inadvertently modified your document

Other Suggestions (Cont.)

- If you have a flash insight during testimony which was not previously discussed with your counsel, keep it to yourself until you have an opportunity to go over it with counsel
- Use recesses to talk to your attorney in a private place to confer

Mistakes

- Every witness makes mistakes
 - Don't get discouraged if it happens
 - Correct it as soon as you realize the mistake
 - You will also have an opportunity to correct mistakes you notice in the transcript before you sign the transcript

Objections

- Your attorney may object to questions
- Three types of objections:
 - Privilege (answer would be something that is attorney/client privileged)
 - Relevancy (Wasting time, badgering witness)
 - Form (Compound questions, leading [if your own witness], lack of foundation, etc.)

Privilege for Expert Witnesses

- Consulting expert has privilege for all communications between expert and attorney
- Testifying expert's communications with attorney are privileged unless they:
 - Relate to compensation
 - Identify facts or data expert relied on in forming opinions
 - Identify assumptions the attorney provided the expert that the expert relied on

Privilege for Expert Witnesses (Cont.)

- Consulting expert draft reports and notes:
 - Likely protected as work product
- Testifying expert draft reports and notes:
 - Draft reports are likely protected but notes are likely discoverable

Objections

- In a deposition, you may still need to answer questions where there was an objection to relevancy or form
 - Any question that may lead to the discovery of admissible evidence is fair game
 - Your attorney will generally tell you whether to answer or not

What Questions You **Shouldn't** Answer in a Deposition

- Any question where:
 - An objection to privilege is made
 - The answer is confidential information
 - Questions about your health, sexuality, or religious beliefs
 - The question has no bearing on the outcome of the case
- If your attorney doesn't object, you as the witness can object on your own

Objection Note

- The opposing attorney may call a judge to ask them to compel you to answer a question that you were told (or chose) not to answer
 - Judge will approve or deny request

Deposition Examples

- We will watch a few video examples:
 - Fictional Example
 - <https://www.youtube.com/watch?v=sBgp0L04BEA>
 - Bill Gates
 - <https://www.youtube.com/watch?v=HhdDZk45HDI>
 - Justin Bieber
 - <https://www.youtube.com/watch?v=emsLrZg160s>
- I will pause and give feedback at times

Best Practices Videos from SEAK

- <https://www.youtube.com/watch?v=BkCHFMDUeBs&list=PLSHIhaKw3X1R3C2aIqUbe4dpSvkWBP-Aw&index=1>
- Click link and you forward button to watch the following sections:
 - Expert Witnesses Need to Actively Listen
 - Finish Your Answers
 - “Off the Record”

Areas of Attack Against an Expert Witness

- Integrity of the evidence
- Expert's work product
- Conclusions of expert
- Competence of expert
- Challenges to science expert uses
- Reliability of lab or equipment used
- Chain of custody or authentication
- Would expert change opinion if facts were changed

General Flow of Expert Witness Deposition

- Expert's qualifications
- Facts expert used to base their opinions
- Analysis and assumptions expert made
- Expert's opinions

Part IV

Trial Testimony

Trial vs Deposition Testimony

- In many ways, they are the opposite:
- Technical terms:
 - Trial: Use lay terms so jury and judge understands
 - Deposition: Can use more technical terms
- Telling a story:
 - Trial: Tell a story that flows so the jury understands
 - Deposition: Give short answers

Trial Preparation

- Trial is both direct and cross examination questions
- Requires more preparation time
- In a trial, witnesses should tell a story during direct examination

Trial Flow

- Expert sworn in
- Expert Voir Dire by counsel that called witness
- Direct examination if expert approved by judge
- Cross examination by opposing counsel
- Redirect by counsel that called witness (optional)
- Recross by opposing counsel (optional)

Broad Example of Trial Flow

- Expert is sworn in and judge accepts them as expert after Voir Dire
- Direct: Expert testifies to prosecutor that they found the defendant had child porn on their computer
- Cross: Expert admits to defense counsel they found malware on the computer
- Redirect: Counsel establishes with prosecutor that the malware was placed on the computer after the timestamps for the porn
- Recross: Defense counsel tries to get expert to admit that it is possible that other malware was on the computer prior to the porn and that the expert didn't check for deleted malware

Expert Voir Dire

- Generally occurs during beginning of direct examination
- Counsel questions expert on educational background, work experience, training, and any other factors that bolsters the credibility of the witness
 - Opposing counsel has opportunity to question witness as well
- Court the rules if witness is qualified to testify as an expert

Expert Voir Dire Example

- Let's review common questions here:
 - <https://www.expertinstitute.com/resources/insights/how-to-qualify-an-expert-witness-a-sample-voir-dire>
- Export Voir Dire example before direct exam:
 - Fictitious Example of Best Practices
 - <https://www.youtube.com/watch?v=25M1FgqewBY>

Common Objections to Questions in Trial

- Leading Question
- Compound Question
- Question Calls for Narrative
- Argumentative Question
- Asked and Answered
- Vague Question
- Non-Responsive

Common Objections to Testimony in Trial

- Relevance of Answer/Question
- Question Lacks Foundation
 - Counsel asks a question before establishing foundation for it
- Calls for Speculation
- Lay Witness Opinion
- Hearsay
 - Testifies about statement made by another person

Judge's Rulings to Objections

- Sustained:
 - Means counsel objected and the judge agrees with the objection
 - You don't have to answer
- Overruled:
 - Means counsel objected and the judge disagrees with the objection
 - You do have to answer

Note

- Pause 5 seconds before answering to allow for objections
 - You don't want to jump the gun on cross exam and answer a question before your attorney can object
 - Unlike a deposition, the trial judge decides in real-time whether you answer a question
 - The 5 seconds will also help you to make sure you understand the question
 - If you don't understand the question, ask for a rephrase

Tips

- Address your answers to the:
 - Jury if a jury trial
 - Judge if a bench trial
- You are taking the role of a teacher and you will get buy in by making eye contact and explaining things in an easy to understand and pleasant manner

Direct Examination

- Attorney directs open ended questions to their own witness that they called to testify
 - Can't lead witness ("Isn't it true, etc.")
 - Can only ask cross examination style leading questions if attorney requests to treat their own witness as hostile (and the judge approves)
- Use demonstrative evidence
 - Charts, graphs, photos, models, audio recording, in-court experiments, diagrams, etc.

Direct Examination

- Your counsel will often address any credibility issues up front so that opposing counsel doesn't look like they caught you in a lie
 - Make sure you are honest and up front with your counsel to ensure they are aware of any potential issues with your background
- Remember, that attorneys can only talk to the jury during their opening and closing statements
 - The expert witness is the method to get the jury to understand the evidence in the case

Direct Examination Example Questions

- Who, what, when, where, how, and why...
 - Please tell the jury about your background.
 - How did you analyze the evidence?
 - Why do you think this is true?
 - What do you think the relevance of this particular figure is?
 - Where was the evidence located?
 - Who is responsible for make sure that X?
 - When did X happen?

Cross Examination

- Opposing attorney asks very pointed and specific questions which lead the witness and suggest a “yes” or “no” answer
 - Putting words in the mouth of the expert (“Isn’t it true that X?”)

Cross Examination

- Expert should be **very** familiar with all facts and exhibits in the case
- A general rule for cross-examinations is that the attorney will not ask you a question that they don't already know the answer to
- Remember you are still addressing the jury on cross, so look at them and make your answers easy to understand

Cross Examination

- As mentioned earlier, do not argue with the attorney or lose your calm
- A jury will often be sympathetic towards a witness that kept their cool and appeared confident during a particularly hostile cross exam
- Remember to wait 5 seconds and ask for a rephrase if you don't understand a question
 - Also ask for rephrases for double negatives and be careful with "yes" or "no" answers to those

Cross Examination Example Questions

- You waited there for 30 minutes, correct?
- Isn't it true that X happened on this date?
- Wouldn't you agree there is no way X could have happened?
- You would agree that there your analysis is not 100% accurate, right?
- Are you aware that there are collisions with MD5 hashes?
- You would agree that there is a possibility that you made a mistake during your examination, correct?

Redirect

- The key point is to tell the truth and be honest
- If something comes out that is true but unfavorable to your case, your attorney can clean it up on redirect examination
- Don't lose your cool

SEAK Best Practices

- <https://www.youtube.com/watch?v=mX6D1hS7jGY&list=PLSHIhaKw3X1R3C2aIqUbe4dpSvkWBP-Aw&index=4>
 - Click link and you forward button to watch the following sections:
 - Advertising
 - Compound Questions
 - Out of Context Quotes
 - Opinion Based on One Inspection
 - Inaccurate Facts
 - Relevant Experience
 - Do Not Permit the Witness to Explain

Trial Testimony Examples

- Direct Exam:
 - Fictitious Example of Best Practices
 - <https://www.youtube.com/watch?v=25M1FgqewBY>
- Cross Exam:
 - Mr. Pincus
 - https://www.youtube.com/watch?v=jv_nlgioQ34
 - OJ Simpson Case – LAPD Criminologist Dennis Fung
 - <https://www.youtube.com/watch?v=eTSXe4GpHkc>

Homework

- Review and understand this slide deck on Canvas
 - Read Chapter 7 before next class
- Research paper due next Monday, 4/6 **prior to class start at 6:25pm**
- Be working on projects with your group.
 - The deliverables are due **Saturday 4/18 by midnight** and should be turned in by a single group member as a zip file

Questions???

